

10:00 AM

Line 1

23-CLJ-05977 UNIFUND CCR, LLC vs. CAROLINA SILVA-MIRANDA

UNIFUND CCR, LLC
CAROLINA SILVA-MIRANDA

SPENCER PENUELA
ADAM FULLMAN

Plaintiff's Motion for Entry of Judgment

TENTATIVE RULING:

Plaintiff Unifund CCR, LLC's Motion for Entry of Judgment is not opposed and is GRANTED. The Declaration of Plaintiff's Counsel Spencer Penuela filed 7/13/2026 attaches a copy of the relevant Settlement Agreement and Stipulation for Entry of Judgment upon Default (the "Stipulation"), establishing the settlement terms, defendant Carolina Silva-Miranda's uncured default and its counsel's non-response, allowing entry of Judgment. Penuela Decl. ¶¶ 4-6 and Exh. 1. The Stipulation expressly allows for enforcement of its terms under Code of Civil Procedure Section 664.6. Penuela Delc., Exh. 1 – Stipulation ¶ 3.

The Court orders Judgment in favor of Plaintiff and against Defendant for \$11,698.92 in principle, plus \$384.07 in court costs, for a total Judgment of \$12,082.99.

If uncontested, the Court will sign and serve the proposed Order and proposed Judgment submitted with the motion, and waives any other order after hearing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

10:00 AM

Line 2

25-CIV-07088 GV SOURCE LLC AND ROGER AMANDO PENA vs. ALEJANDRO F. GRAHAM

GV SOURCE LLC AND ROGER AMANDO PENA
ALEJANDRO F. GRAHAM

VINOD NICHANI
Pro Se / CHRISTINE SINNOTT
SPECIALLY APPEARING

Defendant's Motion to Quash Service of Complaint and Summons

TENTATIVE RULING:

After review of the moving papers, opposition and reply, specially appearing Defendant Alejandro F. Graham's ("Defendant") Motion to Quash Service of Summons is GRANTED.

On February 2, 2026, the Court issued an Order allowing alternate service under Code of Civil Procedure ("CCP") Section 413.30 via email and substitute service on two out of state addresses. On April 27, 2026, the Court amended that Order to remove one of the out of state addresses for service. These Orders were based on applications of Plaintiff that demonstrated, at the time, that Plaintiff had been making diligent attempts to effect service, and that therefore electronic service to Defendant and substitute service to Defendant's alleged last know out of state address were "reasonably calculated to give actual notice to the party to be served." CCP § 413.30(a)(1).

However, Defendant moves to quash service on the basis that service must be in compliance with the Hague Service Convention, as Defendant is a citizen and resident of Nicaragua. Motion, pg. 2, ¶ 2. Defendant declares he is a resident and citizen of the country of Nicaragua, and has never resided in the United States. Graham Decl. of 7/1/26, ¶¶ 2-3. Defendant provides that the United States is a member of the Hague Service Convention. Def. MPA, pg. 1, ¶ 1. Defendant did not provide that Nicaragua is also a member of the Hague Service Convention, though Plaintiff also did not argue this to the contrary either. Regardless, the Court takes Judicial Notice under Evidence Code Section 452(f)-(h), that Nicaragua is a member of the Hague Service Convention. See, Hague Service Convention Website indicating Nicaragua joined the service convention on July 24, 2019.

"The scope of the Hauge Service Convention is extremely broad. Article 1 of the Convention provides: The present Convention shall apply in all cases, in civil or commercial matters, where there is occasion to transmit a judicial or extrajudicial document for service abroad. [¶] This Convention shall not apply where the address of the person to be served with the document is not known."